

PCU297903 Mendoza, Lorie Ann vs. Sierra View District Hospital & Jeffrey Hudson

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Department: 19-Honorable Russell Burke

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Motion: Motion for Summary Judgement/Adjudication

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Re: Mendoza, Lorie Ann vs. Sierra View District Hospital & Jeffrey Hudson

Case No.: PCU297903

Date: September 8, 2026

Time: 8:30 A.M.

Dept. 19-Honorable Russell Burke

Motion: Motion for Summary Judgement/Adjudication

Tentative Ruling: To deny the motion for summary adjudication of the third cause of action for discrimination based on disability and for summary adjudication of the seventh cause of action for failure to prevent discrimination, and to grant the motion for summary adjudication of the remaining causes of action at issue.

Defendants, Sierra View District Hospital (Sierra View) and Jeffrey Hudson-Covolo, filed a motion for summary judgment against plaintiff Lorie Mendoza on her complaint. Mendoza subsequently filed two dismissals, one dismissing the entire action as to Hudson; the other dismissing three of her eight causes of action, plus her "Request for Punitive Damages." The court here takes up the motion as to what remains at issue. The court refers the instant motion in the remainder of this ruling as one made by Sierra View only (e.g., "Sierra View's motion") because Hudson has been dismissed.

The five remaining causes of action at issue are: (1) "Discrimination Based on Sex/Gender" (the second cause of action); (2) "Discrimination Based on Physical Disability" (the third cause of action); (3) "Failure to Accommodate Actual or Perceived Physical Disability" (the fourth cause of action); (4) "Failure to Engage in Good Faith Interactive Process" (the fifth cause of action); and (5) "Failure to Prevent Discrimination, Harassment and Retaliation" (seventh cause of action).

BACKGROUND

Undisputed Facts

Mendoza was hired by Sierra View in September 1995 and began working at the Sierra View Medical Center in 2000. She worked for Sierra View in various nursing and nursing management positions until her promotion to the position of Director of Maternal Child Health on July 24, 2016, which position she held until she was terminated by Sierra View on September 6, 2022.

Mendoza's direct supervisor during her time as Director of Maternal Child Health was Jeffery Hudson-Covolo, who apparently, at all times relevant, was Vice President of Patient Care Services and Chief Nurse Executive.

Mendoza testified at deposition that she made five or six complaints to Sierra View's CEO, Donna Hefner, "probably since 2020," and recalled another, prior, complaint the year she commenced her position as Director of Maternal Child Health, 2016.

Mendoza testified that her complaints were, generally, that Hudson-Covolo was disrespecting her by making decisions without her input, questioning her work efforts, and not keeping her informed of certain events. Mendoza also testified that she did not tell Hefner that Hudson-Covolo was engaging in the complained of conduct because of her gender. Mendoza testified she could not recall making any further complaints to Hefner beyond the five she testified about and that she did not complain to anyone else at Sierra View regarding Hudson-Covolo's conduct, including anyone in Sierra View's Human Resources department.

Mendoza testified, also, that she raised an issue with either Hudson-Covolo or Hefner in early 2020 about not being informed in advance of a video that was shown to her and other employees in her department during a Sierra View town hall meeting that depicted a Sierra View patient who had shared her negative experience with having a stillbirth while in Mendoza unit. Mendoza further testified she informed Sierra View leadership in February 2020 that she was upset and would resign due, in part, to the video she had complained about, but then rescinded her decision to resign.

After Mendoza rescinded her resignation she had a meeting with Hudson-Covolo, on March 11, 2020, that she believed was negative because Hudson-Covolo declined to attend a meeting scheduled with Sierra View doctors. Mendoza claims she reported about this to Hefner.

Mendoza testified, without reference to a specific date, that Hudson-Covolo disrespected her as the Director of Maternal Child Health by leaving her out of a meeting in 2021 involving staffing issues with her department, and that he additionally disrespected her by asking her to do additional work outside the scope of her ordinary responsibilities.

Mendoza testified, generally, that Hudson-Covolo engaged in disrespectful conduct towards her on several occasions on account of her race (but not on account of her sex/gender).

On August 9, 2021, Sierra View received an anonymous letter from one or more members of Mendoza's staff in the Maternal Child Health department. The letter presented concerns that the Maternal Child Health department was critically understaffed. The letter was not critical of Mendoza; she was praised for her efforts to support the staff during challenging periods.

On October 1, 2021, Sierra View received an exit interview from a departing employee in Mendoza's department, Andrea Oseguera, with negative comments directed, mostly, at the employee's direct supervisor, Jennifer Idolyantes; but also at Mendoza (who was Idolyantes's supervisor). Regarding Mendoza, the interviewee stated " '[o]ur director is more willing [than Idolyantes] to help around the unit if the need arises; however, she's not good with communicating with her staff,' " and sometimes " 'come[s] across as a bully or speaks without thinking or out of emotion.' "

On October 8, 2021, Hudson-Covolo conducted an annual review of Mendoza's performance as Director of Maternal Child Health. Hudson-Covolo rated Mendoza "[a]bove average" or "expert" in all of a range of categories. Hudson-Covolo also noted, amongst other things, "a challenge" with one of Mendoza's "RN Clinical Managers who is not fully supported by staff

and [had] called out behaviors and performance through an anonymous letter,” and that Mendoza was “actively working on holding this leader accountable and setting expectations for her” and that Mendoza had “faced staffing and retention situations this year.”

Between October 14, 2021, and October 29, 2021, Colleen Wilson, Sierra View’s Human Resources Manager, investigated the allegations in Oseguera’s October 1, 2021 exit interview, as well as comments she made during a subsequent in-person follow-up on October 7, 2021.

Wilson prepared an internal investigation report. The report reflected Wilson had considered additional materials she deemed related, including, amongst other things, the August 9, 2021 anonymous staff letter and a written response by Mendoza. Wilson’s report covered a range of “Staffing Concerns,” including general nurse staffing challenges, but principally concerned Mendoza’s and Idolyantes’s managerial performance. Wilson’s report was critical of both, but significantly more so regarding Idolyantes.

The report included, in a section entitled “Overall Recommendations,” a finding that there was “sufficient evidence to support poor leadership of the L&D Unit by the Director [Mendoza] and the Manager [Idolyantes].”

On November 5, 2021, Hudson-Covolo met with Mendoza and informed her of the outcome of Wilson’s investigation. Hudson-Covolo additionally addressed the progress of Mendoza’s department on completing required implicit bias training, which apparently had been completed for all staff, but not all physicians.

During the meeting, Hudson-Covolo told Mendoza she would be required to commit to a Performance Accountability and Commitment Plan (PACP) to remain in her director position. Hudson-Covolo also told Mendoza Sierra View could look for other positions that would be a better fit for her considering her performance issues.

Mendoza ended the meeting with Hudson-Covolo by telling him she had a doctor’s appointment at 4:00 p.m. that day, to which Hudson-Covolo responded that he expected her to be back on Monday morning (November 5, 2021 was a Friday). Hudson-Covolo expressly stated he was not terminating Mendoza’s employment.

That same November 5th, Mendoza was seen by her treating physician in connection with her having headaches, heart related concerns, and neck pain. The following day, November 6, 2021, Mendoza commenced a medical leave of absence pursuant to her physician’s direction. Mendoza testified at deposition that she did not know she would need a leave of absence as of the time of her meeting with Hudson-Covolo, and there was no discussion about her needing a leave of absence during the meeting.

After Mendoza commenced her medical leave, her treatment revealed nodules on Mendoza’s thyroid, which required her thyroid to be removed, and she had thyroid removal surgery on March. 13, 2022. Mendoza then underwent further surgery on May 6, 2022, for an ankle injury she sustained in a January 2022 fall, which required twelve weeks of recovery time.

Mendoza remained on leave from November 6, 2021, through September 5, 2022, and, during this time, requested extension of her medical leave multiple times. Sierra View granted each of Mendoza’s requests up through September 5, 2022.

Mendoza and Sierra View’s Human Resources employees were in contact regarding Mendoza’s leave and medical condition throughout the course of her medical leave. Mendoza testified she had no complaints about Sierra View’s handling of her leave, that Sierra View Human Resources personnel were responsive to her requests for additional leave time, that she lodged no complaints about work to anyone while she was on leave, and that she had no communication with Hudson-Covolo during her medical leave. Mendoza testified the only people at Sierra View with whom she spoke during her leave were Yajahira Castelo, a Benefits-Leave Coordinator with the Human Resources department at Sierra View, and probably “Brooke.”

On August 30, 2022, Mendoza told Castelo she would be able to return to work as of September 5, 2022. Mendoza testified at deposition that she did not need any accommodations for her medical issues beyond the medical leave Sierra View had approved.

Mendoza's first return encounter with Sierra View following her medical leave was on September 6, 2022. On September 6, 2022, Hudson-Covolo and Wilson held a meeting with Mendoza to inform her that Sierra View intended to terminate her employment effective immediately due to her inadequate performance in her role as Director of Maternal Child Health, but that she had the option to instead tender her resignation and sign a severance agreement.

Mendoza declined the proposed severance agreement and she was terminated effective September 6, 2022.

Mendoza testified that she believed she was terminated in retaliation for taking medical leave and for no other reason. Mendoza testified she believed Hudson-Covolo was upset at her for taking leave because, during their November 5, 2021 meeting, he said he expected her back at work the following Monday. Mendoza also believed she was terminated because she had effectively been replaced by another employee, Faye Cortez—a manager formerly under Mendoza's supervision—who was placed as interim Director of Maternal Child Health during Mendoza's medical leave.

Mendoza received a written termination letter, signed by Sierra View CEO Hefner and dated September 6, 2022, which detailed various claimed performance issues. The letter was hand-delivered to Mendoza at the meeting during which she was terminated.

Disputed performance issues

Mendoza's termination letter detailed various issues claimed to have arisen and been known about prior to Mendoza's medical leave. Generally, these issues included (a) that Mendoza had never accessed a "California Maternal Quality Care Collaborative (CMQCC)" database for which Sierra View had expended thousands of dollars, over several years, for a subscription; (b) issues Hefner claimed Hudson-Covolo covered in his October 2021 performance evaluation; (c) performance issues indicated in Oseguera's exit interview and the subsequent investigation by Wilson; (d) issues Hefner claimed Hudson-Covolo covered during his November 5, 2021 meeting with Mendoza; and (e) that Mendoza had concluded the November 2021 meeting with Hudson-Covolo, after being instructed to consider her presented options (sign the PACP, or be reassigned to a different position), by "merely noting that [she] was going to visit [her] physician," and despite being told to consider her options over the weekend and that Hudson-Covolo expected her return the following week, Mendoza, "[i]nstead of returning to work the following week," "notified SVMC of [her] need for a medical leave of absence." (Hefner also expressly stated in the letter, though, "[w]hile you have recently returned from an extended medical leave of absence that began on November 6, 2021, this action is entirely unrelated to your leave of absence.")

Mendoza raises various disputes about these claimed performance issues, and, in particular, disputes that any of the items described supplied a legitimate basis for her termination.

Additionally, Hefner's letter detailed several issues she stated "SVMC was made aware of" "during [Mendoza's] leave of absence."

The evident source, or at least one source, of information leading to Sierra View's claimed discovery of additional issues during Mendoza's leave is the subject of evidentiary objections, here, by Mendoza. Mendoza objects to admission of an email that Wilson confirmed, during her deposition, she sent to Sierra View's Vice President of Human Resources, Tracy Canales, detailing a meeting Wilson claimed to have had with interim Director of Maternal Child Health Faye Cortez and which covers issues that are the same or similar to issues Hefner later stated, in Mendoza's termination letter, that "SVMC was made aware of" "during [Mendoza's] leave of absence." The subject email was attached as an exhibit to Wilson's deposition and is included along with portions of that deposition transcript, in Sierra View's submission of evidence.

The court overrules Mendoza's objections to the extent it would preclude the court from concluding, based on the letter and Wilson's testimony, that Wilson had advised Canales of certain concerns Cortez had raised in a meeting with her relating to Mendoza's prior performance as Director of Maternal Child Health, irrespective of whether Wilson truthfully or correctly described the concerns she stated Cortez had raised, and irrespective of whether Cortez had truthfully or correctly described performance issues related to Mendoza. (See *Hart v. Keenan Properties, Inc.* (2020) 9 Cal.5th 442, 447 [262 Cal.Rptr.3d 629, 463 P.3d 824] [When evidence that certain words were spoken or written is admitted to prove that the words were uttered or written and not to prove their truth, the evidence is not hearsay].)

The court additionally notes that any dispute concerning how Sierra View became aware of, or claimed to become aware of, additional performance issues involving Mendoza is not particularly material to the dispositive issues in this case. There is no dispute concerning what Sierra View identified as its reasons for terminating Mendoza—those reasons were expressly set forth in a written termination letter hand-delivered to Mendoza the day she was terminated. What matters in this case is whether Sierra View's stated reasons were legitimate or a mere pretext for a decision ultimately motivated by unlawful discriminatory animus.

Moving on then, the additional issues allegedly discovered during Mendoza's leave, as identified in the termination letter, were as follows:

(1) that Mendoza and Idolyantes had "instructed the nursing staffing office not to use the resources of the outside nurse registry to fill ... staffing needs" in Mendoza's department, which "further complicated" an existing problem of low nurse staffing in the department and was "directly in contradiction to previous directives ... noted in [Mendoza's October 2021 annual evaluation]";

(2) that Mendoza and Idolyantes "did not have a system in place for physicians to actually review BETA heart monitoring strips of patients, but instead [had] the physicians just sign attendance sheets without actual review," which "could have led to potential falsification of records where no actual review of the strips were conducted"

(3) that Mendoza had no established "induction procedure," which she had been "tasked with having"; and

(4) that Mendoza, according to a third-party representative of the Northern California Hearing Coordination Center (NCHCC), had provided "incomplete documentation" and failed "to respond or provide information" related to a California Department of Health Care Services (DHCS) infant hearing screening certification process (overseen by NCHCC), which resulted in Sierra View, in 2019, not receiving "a full 5-year certification," and instead receiving "a more conditional 3-year certification." According to Hefner, the NCHCC representative "noted that they anticipated not being able to re-certify [Sierra View] in light of their previous experience with [Mendoza] in 2019." "Even more troubling," Hefner noted, was that Mendoza never notified Hudson-Covolo, or another employee who oversaw regulatory compliance, "of this conditional certification or the potential to lose the overall certification back in 2019."

Mendoza additionally raises various disputes about these claimed performance issues, and again, particularly disputes that any of the items described supplied a legitimate basis for her termination.

Mendoza's Complaint; Sierra View's Ground for Summary Judgment

In her second cause of action for discrimination based on sex/gender, Mendoza alleges "Defendant's acts and omissions, including terminating Plaintiff's employment, constitute unlawful and discriminatory employment practices on account of Plaintiff's sex/gender in violation of Government Code § 12900, et seq."

The complaint is not clear as to what "acts and omissions" of any defendant, let alone Sierra View specifically, constituted "unlawful and discriminatory employment practices on account of Plaintiff's sex/gender" beyond Mendoza's termination.

Without reference to discrimination based on her sex/gender, Mendoza's complaint highlights the February 2020 incident, in which a video was shown to her staff, about which Mendoza complained, and Mendoza further alleges that when she returned to work after rescinding her resignation in early 2020, "she noticed a shift in how the Chief Nursing Officer, HUDSON-COVOLO, treated her" and that "HUDSON-COVOLO frequently shamed her in front of her peers about not having a master's degree"; that "HUDSON-COVOLO hired nurses for the Labor & Delivery department without consulting [her]"; and that Mendoza was "approached" by Hudson-Covolo for the November 5, 2021 meeting (during which they discussed the Human Resources investigation findings) "in retaliation."

The court here determines, as a preliminary matter, that Mendoza's complaint does not frame any actionable discriminatory action on the part of Sierra View beyond her termination. On summary judgment, the pleadings delimit the scope of the issues (*Carlsen v. Koivumaki* (2014) 227 Cal.App.4th 879, 888 [174 Cal.Rptr.3d 339] (*Carlsen*)), and Mendoza's complaint frames solely that she was terminated on account of her sex/gender, not that she suffered any other adverse employment decision. Mendoza's opposition, notably, solely addresses whether Sierra View's termination decision was based on a pretext for discrimination, and discusses no other claimed adverse employment decision.

In her third cause of action for discrimination based on disability, Mendoza alleges that her "physical disability was a motivating factor in [Sierra View's] wrongdoing, including without limitation, the following: (1) [its] refusal to reasonably accommodate [her] disability; (2) [its] failure to engage in a timely, good-faith, interactive process with [her] to determine whether a reasonable accommodation could be provided for her disability; and (3) terminating [her] employment due to [her] disability."

Sierra View contends Mendoza's second cause of action, based on sex/gender discrimination, fails because "she will be unable to overcome Sierra Views' legitimate, non-discriminatory reason for her termination ... [which was] because of her inadequate job performance as Director of Maternal Health."

Sierra View contends Mendoza's third cause of action, based on disability discrimination, similarly fails, and that Mendoza "cannot show that Sierra View's articulated legitimate business reason for her termination ... was pretext for discrimination."

In her fourth cause of action for failure to accommodate physical disability, Mendoza alleges she "attempted to obtain reasonable accommodation from Sierra View District Hospital for her disability ... [and it] refused to provide [her] with reasonable accommodations and refused to engage in any meaningful discussion to determine if [she] could be reasonably accommodated." Mendoza includes similar allegations in support of her fifth cause of action for failure to engage in good faith interactive process.

Sierra View contends "the undisputed facts establish that Sierra View did everything it could to accommodate [Mendoza] and provided [her] with the one accommodation she ever requested—extended leave" and that "it is undisputed Sierra View engaged with [Mendoza] in a good faith interactive process and provided her with all reasonable accommodations she needed to enable her to return to work without restrictions."

Mendoza's final cause of action at issue, her seventh cause of action for failure to prevent discriminatory practices, includes allegations that she "was subjected to discrimination, harassment, and retaliation due to [her] physical disability," and Sierra View "failed to take reasonable steps to prevent the discrimination, harassment, and retaliation [she] was subjected to despite Sierra View District Hospital's full awareness thereof in violation of Government Code § 12900, et seq."

Mendoza's final cause of action is essentially derivative of her previously stated causes of action, and Sierra View incorporates its prior grounds for summary judgment as against this claim.

SUMMARY JUDGMENT; EMPLOYMENT DISCRIMINATION SPECIFICALLY

"A defendant moving for summary judgment bears the initial burden to show the plaintiff's action has no merit." (Carlsen, supra, 227 Cal.App.4th at p. 889.) If a moving defendant carries the initial burden, the burden shifts, and plaintiff must make a prima facie showing of the existence of a triable issue. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850 [107 Cal.Rptr.2d 841, 24 P.3d 493].)

The California Fair Employment and Housing Act (FEHA) "provides that it is 'an unlawful employment practice' for an employer to take an adverse employment action against a person 'because of' their membership in a protected class." (Veverka v. Department of Veterans Affairs (2024) 102 Cal.App.5th 162, 170 [321 Cal.Rptr.3d 438] (Veverka), citing Gov. Code, § 12940.) " 'Since plaintiffs in employment discrimination cases most often lack direct evidence of the employer's discriminatory intent,' courts frequently rely on a three-part test developed in McDonnell Douglas Corp. v. Green (1973) 411 U.S. 792 [36 L. Ed. 2d 668, 93 S. Ct. 1817] (McDonnell Douglas) to evaluate discrimination claims: ' (1) The complainant must establish a prima facie case of discrimination; (2) the employer must offer a legitimate reason for his actions; (3) the complainant must prove that this reason was a pretext to mask an illegal motive.' " (Ibid., citing Morgan v. Regents of University of California (2000) 88 Cal.App.4th 52, 68 [105 Cal. Rptr. 2d 652].)

"The McDonnell Douglas framework is modified in the summary judgment context. In a summary judgment motion in 'an employment discrimination case, the employer, as the moving party, has the initial burden to present admissible evidence showing either that one or more elements of plaintiff's prima facie case is lacking or that the adverse employment action was based upon legitimate, nondiscriminatory factors.' [Citation.]" (Serri v. Santa Clara University (2014) 226 Cal.App.4th 830, 861 [172 Cal.Rptr.3d 732] (Serri).)

Here, as in Serri, Sierra View presents evidence that Mendoza was terminated for legitimate reasons that were unrelated to unlawful discrimination.

" '[I]f nondiscriminatory, [the employer's] true reasons need not necessarily have been wise or correct. [Citations.] While the objective soundness of an employer's proffered reasons supports their credibility ... , the ultimate issue is simply whether the employer acted with a motive to discriminate illegally. Thus, "legitimate" reasons [citation] in this context are reasons that are facially unrelated to prohibited bias, and which, if true, would thus preclude a finding of discrimination.' [Citation.] Examples of legitimate reasons are a failure to meet performance standards [citation] or a loss of confidence in an employee [citation].

"If the employer meets its initial burden, the burden shifts to the employee to 'demonstrate a triable issue by producing substantial evidence that the employer's stated reasons were untrue or pretextual, or that the employer acted with a discriminatory animus, such that a reasonable trier of fact could conclude that the employer engaged in intentional discrimination or other unlawful action.' [Citation.]

"In Guz [v. Bechtel National, Inc. (2000) 24 Cal.4th 317 [100 Cal.Rptr.2d 352, 8 P.3d 1089]], the Supreme Court emphasized that 'the great weight of federal and California authority holds that an employer is entitled to summary judgment if, considering the employer's innocent explanation for its actions, the evidence as a whole is insufficient to permit a rational inference that the employer's actual motive was discriminatory.' [Citation.] It is not sufficient for an employee to make a bare prima facie showing or to simply deny the credibility of the employer's witnesses or to speculate as to discriminatory motive. [Citations.] Rather it is incumbent upon the employee to produce 'substantial responsive evidence' demonstrating the existence of a material triable controversy as to pretext or discriminatory animus on the part of the employer. [Citation.]" (Serri v. Santa Clara University (2014) 226 Cal.App.4th 830, 861-862 [172 Cal.Rptr.3d 732], original italics.)

The employee makes his or her required showing by demonstrating " 'weaknesses, implausibilities, inconsistencies, incoherencies, or contradictions in the employer's proffered legitimate reasons for its action [such] that a reasonable factfinder could rationally find them "unworthy of credence," [citation], and hence infer "that the employer did not act for the [the asserted] non-discriminatory reasons." [Citations.]' [Citations.]" (Hersant v. Department of Social Services (1997) 57 Cal.App.4th 997, 1005 [67 Cal.Rptr.2d 483].)

"Pretext may be inferred from the timing of the discharge decision, the identity of the decision maker, or by the discharged employee's job performance before termination." (Hanson v. Lucky Stores, Inc. (1999) 74 Cal. App. 4th 215, 224 [87 Cal.

Rptr. 2d 487] (Hanson); Flait v. North American Watch Corp. (1992) 3 Cal. App. 4th 467, 476 [4 Cal. Rptr. 2d 522].) Additionally, "[p]retext may be demonstrated by showing '... that the proffered reason had no basis in fact, the proffered reason did not actually motivate the discharge, or, the proffered reason was insufficient to motivate discharge. [Citation.]" (Hanson, supra, 74 Cal.App.4th at p. 224.)

Further, "evidence that the employer's claimed reason is false—such as that it conflicts with other evidence, or appears to have been contrived after the fact—will tend to suggest that the employer seeks to conceal the real reason for its actions, and this in turn may support an inference that the real reason was unlawful." (Mamou v. Trendwest Resorts, Inc. (2008) 165 Cal. App. 4th 686, 715 [81 Cal. Rptr. 3d 406].)

Importantly, here, to defeat summary judgment, the employee need only demonstrate "triable issues of material fact exist [as to] whether discrimination was a substantial motivating reason for the employer's adverse employment action, even if the employer's professed legitimate reason has not been disputed." (Husman v. Toyota Motor Credit Corp. (2017) 12 Cal. App. 5th 1168, 1186 [220 Cal. Rptr. 3d 42].

ANALYSIS

Sex/Gender and Disability Discrimination Claims

With regard to both plaintiff's second and third causes of action based on gender/sex and disability discrimination, the initial question presented on summary judgment is whether Sierra View presents admissible evidence establishing that Mendoza's termination "was based upon legitimate, nondiscriminatory factors." [Citation.] (Serri, supra, 226 Cal.App.4th 830, 861.)

If so, the burden would shift to Mendoza to show a material triable controversy as to the basis of the termination being a pretext for discrimination based on sex/gender or disability.

The court begins by noting that the asserted performance issues described in Hefner's termination letter to Mendoza circumscribe the scope of performance issues that may properly be considered to support a determination that Mendoza was terminated for legitimate, nondiscriminatory reasons. Hefner's letter expressly identified such issues as the basis for the decision to terminate Mendoza's employment.

As a preliminary matter, the court finds Sierra View's evidence regarding Hudson-Covolo's October 2021 evaluation of Mendoza, the issues investigated and covered in Wilson's Human Resources investigation report, and the issues addressed by Hudson-Covolo tend to support that there were legitimate, non-pretextual performance concerns with Mendoza identified prior to her commencing her medical leave on November 6, 2021.

The court further finds that Mendoza entirely failed to present evidence of a triable issue concerning whether any of the pre-leave identified performance issues were mere pretexts for discriminatory animus with respect to any adverse employment decision other than her termination.

All that said, Hefner's characterization of the "performance and leadership issues" addressed with Mendoza prior to her leave in the letter, which was provided to Mendoza as a basis for her termination after her medical leave, somewhat undermines that the issues raised were not mere pretext for an ultimately discriminatory decision to terminate Mendoza based on disability.

Issues claimed to have arisen and been addressed prior to Mendoza's leave

First, the criticism that Mendoza failed to “implement[] or access[]” a subscription database, the CMQCC database, after she “indicated” her unit would use it, leading to cancellation of the service, preliminarily appears like something of a strained criticism, and, notable, the issue was not identified as an issue in Mendoza’s performance review or Wilson’s report. What’s more, Mendoza’s own testimony that she underwent training to use the service, and used it, albeit infrequently, tends to show a triable issue concerning whether this stated issue was not pretextual. While it is true “[a] party ‘cannot avoid summary judgment by asserting facts based on mere speculation and conjecture,’” (Mackey v. Trustees of California State University (2019) 31 Cal.App.5th 640, 657 [242 Cal.Rptr.3d 757]), Mendoza’s testimony was not mere speculation and conjecture, rather she expressly described various instances in which she personally accessed and used the database.

The court here acknowledges, and expressly overrules, Sierra View’s evidentiary objections to the additional portions of Mendoza’s deposition transcript, as well the additional portions of Wilson’s deposition transcript attached to the declaration of Mendoza’s counsel, which provide, in some instances, a more complete picture of the testimony provided by Mendoza and Wilson at their depositions.

Second, Hefner’s characterization of Hudson-Covolo’s October 2021 annual evaluation is at odds with his having rated Mendoza “[a]bove average” or “expert” in all of a range of categories, and having specifically commented positively regarding her capabilities, as well as noting “[s]he provides training for her staff to improve care delivery and hold[s] staff accountable to standards of nursing care and professional standards of practice.”

Whereas Hefner describes the evaluation as having “[c]oncerns about [Mendoza’s] lack of leadership development skills and competency,” prompting a recommendation that she “join a state nurse leadership organization to provide resources to address this concern,” nothing in the evaluation suggested a concern that Mendoza lacked “leadership development skills and competency.”

Hudson-Covolo did “recommend [Mendoza] join[] the state wide professional nursing leadership organization” because “[g]ood opportunities exist for networking, leadership development, conferences, and courses that can support leadership skills development,” but Hudson-Covolo’s comments are difficult to read as expressing any critical concern, particularly as he rated her 5 out of 5 on “Compliance,” encompassing, amongst other things, Mendoza’s compliance with “attending all pertinent training,” 5 out of 5 on “Continuing Education, Growth & Development,” and, in a section devoted to “areas requiring improvement in job performance,” did not mention any concerns about Mendoza’s “lack of leadership development skills and competency.”

Additionally, while Hefner described the evaluation as having raised “[c]oncerns with [Mendoza’s] reliance on travel RN’s with no plan to train existing nurses in the related fields at the MCH,” Hudson-Covolo, much more neutrally, after noting Mendoza’s having “faced staffing and retention situations this year,” and having “relied on travel RN’s to augment her staff,” merely stated “[t]he goal is to continue training RNs within to [sic] L&D AND to also put in place a[n] academic/precepted experience for all new L&D RNs going forward.”

Further, while Hefner stated Mendoza was “instructed to plan, develop, and implement a training program in collaboration with SVMC’s Nursing Education program,” the review actually stated “[t]he Education Department will be collaborating with [Mendoza] on the planning, development, and implementation of this program,” and noted that Mendoza was “in support of this needed resource to standardize training and measure outcomes of those efforts.”

Also, while Hefner stated Hudson-Covolo addressed “[c]oncerns with not supporting staff with their feedback regarding [Idolyantes], and that Mendoza “acknowledged the concern but failed to provide any feedback on an action plan,” Hudson-Covolo stated in his review that, while Mendoza was “having a challenge with [Idolyantes] who is not fully supported by staff [who] called out behaviors and performance through an anonymous letter,” she was “actively working on holding [Idolyantes] accountable and setting expectations for her.”

Also notable here, the August 2021 anonymous letter, assuming that is the letter Hudson-Covolo was referring to, was not, in fact, critical of Idolyantes, and instead praised both she and Mendoza for their working “the floor (days and nights) almost daily,” noting, “[w]ithout their support, we would have surely already had a bad outcome due to staffing shortages.”

Third, Hefner similarly mischaracterized Oseguera's exit interview complaints and Wilson's subsequent investigation as raising "several concerns about [Mendoza's leadership] and [her] ability to continue in that role."

Hefner correctly describes Oseguera's complaint as expressing "concerns about [Mendoza] and [Idolyantes]," but the complaint, according to Wilson's report, was more so directed at Idolyantes than Mendoza, whom Oseguera specifically acknowledged was "more willing to help around the unit if the need arises," but was "not good with communicating with her staff," and could "come across as a bully or speaks without thinking or out of emotion."

Wilson's report, while noting the need for Mendoza to take an active role in addressing problems staff were stating they were having with Idolyantes, set important context at the outset. She wrote "[i]t is well-known there is a national nursing shortage impacting availability of RN's across California" and "due to nursing shortages across the nation, there have been challenges filling all the open positions timely." Wilson described a Human Resources survey of a period from January 1, 2020 through October 18, 2021, noting 34 nurse applications, of which 22 were screened out based on hiring criteria, 9 "declined offer or withdrew interest after pre-screen," and only 3 remaining candidates who were ultimately hired.

Additionally, as noted above, while Wilson's report noted performance issues with Mendoza, the report largely described management failures on the part of Idolyantes and also noted "collaborat[ion]" of the concerns expressed in Oseguera's exit interview principally pertained to Idolyantes's management failures.

The November 5, 2021 meeting with Hudson-Covolo

It appears Hefner did accurately characterize Hudson-Covolo's in person meeting with Mendoza on November 5, 2021, following the Human Resources investigation, based on the other evidence submitted, and, further still, Mendoza does not present evidence supporting that her being given the choice to agree to a performance improvement plan or accept reassignment was motivated by unlawful discriminatory considerations.

As to disability discrimination, there is no evidence that Sierra View, or Mendoza for that matter, had any reason to know Mendoza would be required to go out on medical leave prior to the day following Mendoza's meeting with Hudson-Covolo. It is undisputed that Mendoza did not know she would need a leave of absence as of her meeting with Hudson-Covolo, and the only evidence concerning any prior medical issues is Mendoza's own testimony that she had taken prior leaves of absence without any issues.

As to gender/sex discrimination, Mendoza presents no evidence that Hudson-Covolo's giving her the option to agree to a performance improvement plan or accept reassignment based on performance issues was a pretext for discrimination based on her sex/gender. Notwithstanding that Hefner later mischaracterized the extent to which prior complaints pertained to performance issues on the part of Mendoza, it is clear that there were performance concerns being addressed with her prior to her taking medical leave and there is no evidence that the addressing of such concerns was a merely pretext for sex/gender discrimination.

Mendoza claims to have had complaints about Hudson-Covolo that she expressed in the past, but her testimony about those complaints only vaguely described instances in which Hudson-Covolo was disrespecting her by making decisions without her input, questioning her work efforts, and not keeping her informed of certain events. Notably, also, Mendoza testified herself that she believed the ultimate decision to terminate her was based on her taking medical leave, and no other discriminatory reason. Finally, Hudson-Covolo expressly made clear that he was not terminating Mendoza at their November 5, 2021 meeting and expected her back the following Monday morning.

Issues Hefner claimed were discovered during Mendoza's leave

The court is additionally not persuaded by Mendoza's showing, as to the issues Sierra View claimed to have discovered during her leave, that these issues were clearly pretext for a decision to terminate her for discriminatory reasons.

As to the issue of Sierra View not receiving a full 5-year DHCS infant hearing screening certification, and instead receiving a 3-year conditional certification, incident to Mendoza's having provided "incomplete documentation" and failed "to respond or provide information" during the certification process, and Mendoza's claimed subsequent failure to apprise Sierra View, Mendoza does not present evidence that she was not responsible for the failure, and instead only submits evidence that she told Hudson-Covolo and that the certification was not, ultimately, revoked.

Mendoza specifically testified that she was in charge of the process, but delegated it to another manager, and, acknowledging the requirement to provide information, testified only that she was not "aware" the information wasn't provided and that it "should" have been provided by the manager to whom she delegated the responsibility. Mendoza then indicated Hudson-Covolo would have been aware of the conditional certification because she "wasn't the only one that got the letter [advising of the conditional certification]," and Hudson-Covolo and Hefner would have also received it. When asked if she told Hudson-Covolo, she first stated "[y]es ... [Hudson-Covolo] knew that" (*italics*), but then, in follow up, testified she told him "[w]hen we got the report." She then continued to emphasized repeatedly, however, how Hudson-Covolo had "received the report" just like she had. Mendoza testified that she never went to Hudson-Covolo to acknowledge that information was not provided timely, despite that it was her responsibility, because she had already discussed the issue with the person to whom she had delegated her responsibility.

Based on this evidence, the court does not find Mendoza demonstrated that the issue of the DHCS certification was demonstrated to be mere pretext, and, instead, appeared to involve a fairly significant shortcoming in her carrying out of her responsibilities.

Additionally, regarding the issue that Mendoza "did not have a system in place for physicians to actually review BETA heart monitoring strips of patients, but instead [had] the physicians just sign attendance sheets without actual review," which "could have led to potential falsification of records," Mendoza does not make a persuasive showing that the stated performance issue was pretextual. Mendoza solely submits that no actual falsification occurred, and that Idolyantes had shared responsibility for having a system in place, Idolyantes was ultimately reassigned while she was terminated. Mendoza's evidence entirely fails to address that the system she had implemented involved an avoidable risk of potential falsification of records.

Finally, the court does find Mendoza presents sufficient evidence of a triable issues concerning whether that the identified performance issue of Mendoza's having attempted to "use the resources of the outside nurse registry to fill ... staffing needs" was pretextual, in that Mendoza testified she was using the registry and there were simply no candidates to utilize for her unit's staffing needs.

Further, Mendoza presents evidence that, although she had not established an "induction procedure" she had been "tasked with having," as also raised in Hefner's letter, she had been assigned the task before taking a prior medical leave and the task was ultimately handled, incident to her being on leave, by Idolyantes and a physician. Mendoza's evidence here additionally tends to support a triable issue that the "induction procedure" issue was pretextual.

Viewing these issues Hefner claimed were discovered during Mendoza's leave together as a whole, however, the court would conclude, considering these issues in isolation, that Sierra View had made a sufficient prima facie showing that it had a legitimate, nondiscriminatory reason for terminating Mendoza, and that Mendoza had failed to demonstrate the reasons, considered together, were ill-founded, implausible, inconsistent, or contradictory, such that a reasonable factfinder could find them unworthy of credence. (*Hersant v. Department of Social Services*, *supra*, 57 Cal.App.4th at p. 1005.)

The court, nevertheless, finds that there are triable issues that remain as to whether Sierra View's stated basis for termination of Mendoza was a pretext for unlawful discrimination based on her having taken leave.

It cannot be ignored in this case that Mendoza was ultimately terminated the first day she returned to Sierra View and was, apparently that day, provided a hand-delivered termination letter indicating the decision had been made before she arrived at her meeting with Hudson-Covolo and Hefner.

As a threshold matter, as explained above, while the letter listed performance issues that Mendoza fails to show were pretext for an ultimately discriminatory decision, the letter also includes issues that a reasonable jury could conclude were pretextual.

Additionally, the temporal proximity between the occurrence of Mendoza's medical leave and her termination, while, of course, not alone sufficient to raise a triable issue as to pretext, tend to support that the stated basis for termination was pretextual (See *Arteaga v. Brink's, Inc.* (2008) 163 Cal.App.4th 327, 353 [77 Cal.Rptr.3d 654].)

"In the classic situation where temporal proximity is a factor, an employee has worked for the same employer for several years, has a good or excellent performance record, and then, after engaging in some type of protected activity—disclosing a disability—is suddenly accused of serious performance problems, subjected to derogatory comments about the protected activity, and terminated. In those circumstances, temporal proximity, together with the other evidence, may be sufficient to establish pretext. [Citations.]" (*Id.*, at pp. 353-354.)

This case clearly does not present a mirror of this "classic situation," but it does have important similarities. Again, contrary to Hefner's characterization in the termination letter, Hudson-Covolo's performance evaluation of Mendoza, completed just over a month prior to Mendoza's taking medical leave, rated Mendoza "[a]bove average" or "expert" in all of a range of categories, and specifically commented positively regarding her capabilities, as well as noting "[s]he provides training for her staff to improve care delivery and hold[s] staff accountable to standards of nursing care and professional standards of practice."

Moreover, Hefner's distorted characterization of Hudson-Covolo's evaluation in the subsequent termination letter tends to support that she was suddenly being accused of serious performance issues, at least with respect to some issues, as a pretextual basis for terminating her. This change in characterization principally occurred after the fact of Mendoza taking medical leave.

Also notable, Hefner's letter specifically flagged that Mendoza had concluded the November 2021 meeting with Hudson-Covolo, after being instructed to consider her presented options (sign the PACP, or be reassigned to a different position), by "merely noting that [she] was going to visit [her] physician," and despite being told to consider her options over the weekend and that Hudson-Covolo expected her return the following week, Mendoza, "[i]nstead of returning to work the following week," "notified SVMC of [her] need for a medical leave of absence." While Hefner also expressly stated in the letter that Mendoza's termination was "entirely unrelated to [her] leave of absence," that statement is inconsistent with the other just noted point made in the letter, and the court cannot ignore this statement's appearance in a letter being handed Mendoza the day she was terminated, the very first day she returned from medical leave.

Additionally, while it is true that Hefner's letter identifies various other issues discovered during Mendoza's leave that do not bear the same indicia of pretext, the court finds that a reasonable jury could potentially infer prohibited intent from Sierra View's failure to give Mendoza an opportunity to respond to the issues Sierra View assertedly discovered during her leave in circumstances of this case. The court does not find that *Mendoza v. Western Medical Center Santa Ana* (2014) 222 Cal.App.4th 1334 [166 Cal.Rptr.3d 720], cited by Mendoza along with other federal authorities, establishes that the failure to give Mendoza an opportunity to respond, alone, could support a pretext determination, but it does find that, given the circumstances of these various issues being assertedly uncovered while Mendoza was on leave, coupled with the fact that a significant source of the information was apparently Mendoza's eventual replacement in the Director of Maternal Child Health position, who was serving, during Mendoza's leave, as interim Director, the failure to address the assertedly uncovered performance issues with Mendoza prior to termination tends to support that a reasonable jury could find Sierra View's stated basis for termination was pretextual, particularly given the temporal proximity of the termination decision to the occurrence of Mendoza's leave, i.e., the day she first returned to Sierra View.

Conclusion regarding Mendoza's third cause of action for discrimination based on disability.

Based on the foregoing, the court denies summary adjudication as to Mendoza's third cause of action for discrimination based on disability.

Summary judgment granted as to Mendoza's second cause of action for discrimination based on sex/gender

The court does, however, find that summary adjudication is warranted as to Mendoza's second cause of action for discrimination based on sex/gender.

While the court finds, on view of the whole of the facts, a triable issue remains as to whether Sierra View's stated basis for termination was a pretext for discrimination based on Mendoza's having taken medical leave, the court does not find the whole of the evidence would enable a reasonable jury to conclude that the stated basis for termination was a pretext for discrimination based on Mendoza's sex/gender. An essential component of the court's determination that a reasonable jury could find Sierra View's stated basis for termination was pretextual is the timing of the termination decision relative to Mendoza's medical leave, combined with the other indicia that the stated grounds for termination were, in some respects, weak, inconsistent and contradictory, and, importantly, that prior determinations regarding Mendoza's performance were mischaracterized after she went on medical leave. These circumstances do not similarly support that Sierra View's stated basis for termination was a pretext for discrimination based on sex/gender.

Stated another way, without the predicate fact in this case of Mendoza's medical leave, and the immediately following termination decision, Mendoza's showing of pretext is entirely a bare showing denying the credibility of the reasons Sierra View gave for her termination. There is no evidence that Sierra View terminated Mendoza for discriminatory reasons relating to her sex/gender. Undisputed in this case is that Mendoza believed she was terminated in retaliation for taking leave and for no other reason.

Accordingly, the court grants summary adjudication as to Mendoza's third cause of action for discrimination based on sex/gender.

Fourth Cause of Action for "Failure to Accommodate" & Fifth Cause of Action for "Failure to Engage in Good Faith Interactive Process"

The court additionally finds that summary adjudication is warranted as to Mendoza's fourth "failure to accommodate" and fifth "failure to engage in good faith interactive process" causes of action.

The undisputed material facts conclusively establish that Sierra View did not fail to accommodate Mendoza's medical issues or that it failed to engage in a good faith interactive process with her, at any point up to her termination on September 6, 2022. Mendoza was provided medical leave as requested, when requested, and through multiple extensions, and Sierra View was continually responsive throughout her leave.

Critically, also, Mendoza announced her ability to return to work without restrictions or need for accommodation on August 30, 2022, and testified she was able to return to work on September 6, 2022, without restrictions or need for accommodation.

A reasonable jury could only conclude that Mendoza never requested engagement in an interactive process at any point during the time Sierra View had reason to believe she had medical issues impeding her ability to work, and that Sierra View was not aware of, and had no reason to believe, Mendoza required any disability accommodations or that any interactive process was required to consider such accommodations throughout the time until Mendoza represented she was able to return to work without need for accommodation. (Cf., *Prilliman v. United Air Lines, Inc.* (1997) 53 Cal.App.4th 935, 950 [62 Cal.Rptr.2d 142] [an employer who knows of the disability of an employee has an affirmative duty to communicate available reasonable accommodations]; *Zamora v. Security Industry Specialists, Inc.* (2021) 71 Cal.App.5th 1, 41 [285 Cal.Rptr.3d 809] [employer must engage in good faith interactive process in response to a request, and must initiate such process itself "if it becomes aware of the need for accommodation through a third party.]

The only triable issues in this case concern whether Sierra View terminated Mendoza in retaliation for taking a leave of absence. The evidence conclusively establishes that Sierra View had reason to believe, based on Mendoza's representations, that, as of September 5, 2025, she was able to return to work without accommodation and there was no need for an interactive process to consider accommodations.

Accordingly, the court grants the motion for summary adjudication as to the fourth and fifth causes of action based on failure to provide reasonable accommodations and failure to engage in a good faith interactive process.

Seventh Cause of Action for Failure to Prevent Discrimination

Both parties concede that Mendoza's seventh cause of action for the failure to prevent discrimination is entirely derivative of Mendoza's preceding causes of action. Sierra View solely incorporates its prior arguments in support of its request for summary adjudication of this claim; Mendoza's arguments solely pertain to her contention that Sierra View's stated basis for terminating her was pretextual.

From this it follows that Sierra View's motion fails as to the seventh cause of action if it does not defeat all of Mendoza's preceding causes of action. Based on the court's determinations above, it does not.

Accordingly, the motion for summary adjudication of the seventh cause of action based on failure to prevent discrimination is denied.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.